CONSULTANCY AGREEMENT

This **CONSULTANCY AGREEMENT** is made at Gurugram on 21 Aug, 2023

BETWEEN

Addictive Learning Technology Pvt. Ltd. (CIN U74110DL2017PTC323508, GST 06AAQCA0212K1ZV**)**, trading as "**LawSikho"**, incorporated as a Private Limited Company under the Companies Act, 2013 and having its principal place of business at **576, Block C, Sushant Lok Phase I, Sector 43, Gurugram, Haryana 122002, India** and having its official website www.lawsikho.com; hereinafter referred to as "**LawSikho**" (unless repugnant to the context, this expression shall mean and include successors-in-interest/office and assigns) of the **First Part**;

AND

Ankur Bardhan (PAN: BCCPB8094A), permanent resident of **Front of Sahara India, RAJENDRA PATH, NEW MARKET, Katihar, Bihar 854105** (hereinafter referred to as the **"Consultant"**, which expression shall unless repugnant to the context or meaning thereof,be deemed to mean and include his or her permitted assigns) of the **Second Part**; (Parties of the First Part and Parties of the Second Part are hereafter collectively referred to as the 'Parties' and individually as 'Party')

WHEREAS

A. LawSikho is engaged in the activity of developing various online, mobile-delivered courses and courses administered through blended learning (**Courses**), which are created and conducted by LawSikho alone or in collaboration with other entities, including industry bodies or institutional partners such as universities of national and international repute, MEPSC, NSDC (**Course Partners**).

B. The Consultant has qualifications and knowledge in the field of allotted work. The Consultant is therefore a key resource person pertaining to all such knowledge works which fall in the due course of the business of LawSikho, as the case may be.

C. LawSikho desires the services of the Consultant, and the Consultant wishes to provide such services to LawSikho.

D. In consideration of the mutual promises and agreements between the Parties hereto, the Parties have agreed to enter into this Agreement to govern the terms and conditions of their association.

NOW, THEREFORE IT IS HEREBY AGREED BY AND AMONGST THE PARTIES AS UNDER:

1. **RETENTION OF CONSULTANT**

Ankur Bardhan

1.1. LawSikho hereby retains the Consultant to provide services to LawSikho during the Term of this Agreement. The Consultant will advise and assist LawSikho in achieving its organizational goals.

1.2. The Consultant is an independent contractor and not an employee or partner of LawSikho. Unless otherwise specifically agreed in writing, Consultant shall not be entitled to or eligible for any benefits provided by LawSikho to its employees.

2. TERM OF THE AGREEMENT

2.1. Theconsultingperiodshallbedeemedtohavecommencedfrom **21 Jul, 2023** and shall continue unless terminated by notice by either party or terminated on disciplinary grounds or for non-performance, as provided below in this Agreement.

2.2. Notwithstanding anything in clause 2.1, wherever a progress review period period has been provided for in the Annexure A to this Agreement, which forms a part and parcel of this Agreement, theprogress review period shall be deemed to continue unless the manager to whom the Consultantis reporting communicates the confirmation of the Consultant to the Human Resources.

3. OBLIGATIONS OF CONSULTANT

3.1. The Consultant shall be responsible for providing the Services as described in Annexure A, which forms a part and parcel of this Agreement, or such other services as may be allocated to him or her by the manager to whom they are reporting, for the Term of this Agreement.

3.2. The Consultant shall act in the best interest of LawSikho (and not their own personal ambitions) when attending, representing or appearing in events conducted or sponsored by LawSikho, or when their participation is financed by LawSikho.

3.3. The Consultant is required to commit to constant research and learning in all the areas which fall within the purview of and due course of work.

3.4. The consultant shall be required to work according to the monthly performance metrics set by the manager. Performance will be judged based on the results and outcomes rather than the number of hours being put in a month.

3.5. The Consultant will be required to work for 9 hours per day (excluding breaks) and may be required to work for such additional hours without pay, as per the need and requirement of the business or as may be necessary for the proper performance of contractual obligations and responsibilities of the Consultant. (Working Days)

3.6. The Consultant shall at all times abide by the instructions of LawSikho in the discharge and proper performance of contractual obligations and responsibilities as per this Agreement.

3.7. Applicable policies: The Consultant shall additionally perform all duties according to all policies prevalent within LawSikho that may be notified to the consultant. LawSikho shall

Ankur Bardhan

Abhyuday Agarwal

have the right to vary the terms of the policies at any point of time, and the Consultant will be notified of such amendments.

4. REMUNERATION

4.1. In consideration for the provision of the Consultant's Services, LawSikho shall pay the Consultant a sum of **INR 30,000/- (Thirty Thousand Rupees)** per month as retainership, subject to deduction of tax at source and any other relevant compulsory statutory deductions. The retainership shall be paid on a monthly basis on or before 7th (Seventh) day of the next month subject to provision of a proper invoice by the Consultant on or before 28th of the month for which the retainership is being paid. The payment cycle of LawSikho runs from the 26th of the month to the 25th of next month.

4.2. The Consultant may be additionally provided with additional payments designed to achieve the following objectives

4.2.1. improve the performance of the consultant,

4.2.2. incentives tied to specific outcomes, performance of LawSikho or its market valuation.

4.2.3. encourage continued engagement.

4.2.4. any other benefits which may be specified in documents specifying the engagement of the Consultant or other suitable form of written communication.

4.3. All reasonable expenses (including out-of-pocket costs, travel expenses, entertainment and food for guests, etc.) made while on business tours in connection with the services rendered by the Consultant for or on behalf of LawSikho or for the benefit of LawSikho shall be paid by LawSikho, subject to furnishing of necessary documentation by the Consultant, *provided that* any expense of more than INR 500 shall only be reimbursed if prior written approval of LawSikho is obtained.

4.4. Payment should be made by cheque or by transfer to the bank account of the Consultant, or by any other commercial banking methods.

4.5. The Consultant may in certain situations be required to travel, depending upon the needs of work and as specified by LawSikho.

5. CONFIDENTIAL INFORMATION

5.1. For the purpose of this Agreement, the term "Confidential Information" shall mean any discussion pertaining to the course work, skill building exercises, audio/video/written content, templates, marketing campaigns, strategic plans, confidential technical data, trade secrets, know-how or any other information disclosed, in the course of or performance of work contemplated under this Agreement, by LawSikho to the Consultant in writing, orally or in any other form or manner.

Ankur Bardhan

Abhyuday Agarwal

5.2. The Consultant agrees and undertakes:

5.2.1. that the Consultant shall not, without the prior written permission of LawSikho, directly or indirectly disclose or cause to be disclosed any Confidential Information to any third party;

5.2.2. that the Consultant shall take all steps as may be reasonably necessary to protect the integrity of the Confidential Information and to ensure avoiding any unauthorized disclosure thereof;

5.2.3. that the Consultant shall promptly inform LawSikho of any accidental disclosure of Confidential Information and shall take all steps, together with LawSikho, to retrieve and protect the Confidential Information;

5.2.4. that the Consultant shall use the Confidential Information only for the purpose for which it was provided and shall not use it for personal benefit or profit from the same in any unauthorised manner;

5.2.5. Upon request by LawSikho, the Consultant shall hand over possession of all Confidential Information furnished pursuant to this Agreement; and

5.3. The Consultant shall strictly adhere to the provisions mentioned above except:

5.3.1. to the extent that such Confidential Information is already in the public domain, otherwise than by breach of this Agreement;

5.3.2. to the extent that such Confidential Information is required to be disclosed by any applicable law or any applicable regulatory requirements or by any regulatory body to whose jurisdiction the Consultant is subject or with whose instructions it is customary to comply under notice to LawSikho.

5.4. The Consultant shall not, except as and to the extent required, make any copies, distribute or reproduce the Confidential Information. Such copies or reproductions shall be subject to the terms and conditions of this Agreement and the Consultant shall take such steps as are necessary to restrict access to and protect the confidentiality of such copies or reproductions of the Confidential Information.

5.5. Due to the extent of the disclosure of the Confidential Information to the Consultant, the Consultant understands that LawSikho shall suffer irreparable damage if the Consultant breaches any of his / her obligations under this Agreement and that monetary damages shall be inadequate to compensate LawSikho. Consequently, the Consultant acknowledges that, in addition to any other remedies of rights, LawSikho shall have the right to obtain injunctive relief to enforce the terms of this Agreement.

5.6. For the sake of clarity, the restrictions placed on Confidential Information under this Clause 5 are applicable evenduring the progress review period and for a period of two years following termination of this Agreement.

Ankur Bardhan

Abhyuday Agarwal

6. NON-COMPETITION AND NON-SOLICIT

6.1. During the Term of this Agreement, and for a period of two years after the termination or expiration of this Agreement, the Consultant agrees that he or she shall not:

6.1.1. start any new business which is identical or similar to the business model, product or services provided by LawSikho or have any arrangement with a competitor of LawSikho in any manner;

6.1.2. directly or indirectly, engage, be involved with or hold any interest in a business organization or entity which is a competitor (or any person or entity that is reasonably anticipated to the general knowledge of the Consultant or the public to become a competitor) of LawSikho; and

6.1.3. originate any publicity, news release or other public announcement related to the Agreement or any work contemplated under the Agreement without the prior written approval of LawSikho.

6.2. Non-solicitation: During the Term of this Agreement and for two (2) years following termination of the Consultant's engagement he or she shall not:

6.2.1. solicit consultants, vendors, employees, customers or clients either with the intention to cause them to terminate their relationship with LawSikho, or to start competing businesses or to engage in other activities that are against the interest of LawSikho.

6.2.2. dissuade potential consultants, vendors, employees or clients from establishing ties with LawSikho.

7. NON - DISPARAGEMENT

During the Term of this Agreement and at all times thereafter, the Consultant shall not, directly or through any other person make any public or private statements, except by way of feedback to the Company itself, (whether orally, in writing, via electronic transmission, or otherwise) that disparages, denigrates or maligns any of the Company's respective businesses, products, services, activities, operations, affairs, reputations or prospects; or any of the Company's respective officers, employees, directors, partners, agents, members or shareholders. For purposes of clarification, and not limitation, a statement shall be deemed to disparage, denigrate or malign the other party if such statement could be reasonably construed to adversely affect the opinion that any other person may have or form of such first person.

The foregoing limitations shall not be violated by truthful statements made by the Consultant : (i) to any governmental authority or (ii) which are in response to legal process, required governmental testimony or filings, or administrative or arbitral proceedings (including, without limitation, depositions in connection with such proceedings).

8. INTELLECTUAL PROPERTY

Ankur Bardhan

Abhyuday Agarwal

8.1. The Consultant acknowledges that ownership of all intellectual property in all work performed by the Consultant in connection with the performance of the services under this Agreement, or relating to the business of LawSikho, or using the resources provided by LawSikho, shall vest in LawSikho. Intellectual property in all such work shall automatically be assigned permanently to LawSikho as soon as it comes into existence and vest in LawSikho. LawSikho shall be free to exploit such intellectual property in any geographical territory that it deems fit. The Consultant shall not retain any rights in such work, except any moral rights, where applicable. LawSikho agrees to give reasonable attribution for the intellectual property so created by the Consultant and agrees that the moral rights including the rights of paternity or integrity, any right to claim authorship of the Consultant existing under judicial or statutory law of any country in the world, or under any treaty, regardless of whether or not such right is denominated or generally referred to as a "moral" right shall remain with the Consultant.

8.2. The Consultant must keep written records of the work performed for LawSikho under this Agreement, which must be submitted to LawSikho when requested by LawSikho or upon termination of this Agreement by way of handover. In case of failure to provide the same upon termination of this Agreement, the Consultant understands that this may cause irreparable damage and that monetary damages shall be inadequate to compensate LawSikho. LawSikho may require the Consultant to spend additional time beyond notice period if the Consultant delays handover. Consequently, the Consultant acknowledges that, in addition to any other remedies of rights, LawSikho shall have the right to obtain injunctive relief to enforce the terms of this Agreement. Without prejudice to other rights available to LawSikho, LawSikho may withhold any pending remuneration to be paid to the Consultant till the submission of such information to LawSikho as required under this clause.

8.3. The Consultant shall cooperate with LawSikho in protection and enforcement of any intellectual property rights deriving as a result of the services, both during the Term and after the termination of the Agreement. This includes executing, acknowledging and delivering all documents or papers which are necessary to protect the said work, invention, improvement or idea.

9. EXCLUSIVITY

The Consultant agrees that during the term of this Agreement, the Consultant shall be exclusively working on the provision of services for LawSikho and shall not take on any other engagement, employment or consultancy other than that with LawSikho.

10. TERMINATION

10.1. Termination during the progress review period (first 3 months from Date of Joining)

Ankur Bardhan

Abhyuday Agarwal

10.1.1. The services of the Consultant may be terminated by the company at any point of time during the first 3 months from Date of Joining, which would be effective immediately.

10.2. Consequence of non-performance of obligations/ non-payment

10.2.1. In case of non-payment of the remuneration by LawSikho, or non-performance of the services by the Consultant as per the terms of this Agreement, a notice may be given to rectify the default within a minimum period of 7 days. In case such default is not remedied by the defaulting party after such notice period has lapsed, it shall qualify as a material breach under this Agreement, providing rights to either party to terminate this Agreement. The determination of the performance or non-performance by the principal point of contact as noted in Annexure A to this Agreement shall be considered to be final.

10.3. Termination without cause

10.3.1. LawSikho may terminate this Agreement with a minimum of 30 days' prior notice to the other Party, which will become effective upon the expiry of the notice period. The Consultant can terminate the Agreement with a 90-day notice period. LawSikho may in good faith agree to waive the notice period from 90 days, if an alternative resource is found and adequately trained by the Consultant to the satisfaction of the Company.

10.4. Full & Final Settlement

10.4.1. Upon receiving the consultant's intimation of discontinuation from the company, their remuneration will be put on hold and will be cleared along with full & final settlement. After completion of exit formalities, the consultant's full and final payout will be cleared, 45 days after the last working day. The consultant must ensure that the notice period is served, handover is completed and exit documents are duly signed and submitted on the last working day in order to initiate release of the full & final dues.

10.5. Handover

10.5.1. Upon the termination of this Agreement for any reason, the Consultant shall hand over charge to such person nominated for that purpose by LawSikho and shall deliver to such person such papers, documents, all work done for LawSikho and other property of LawSikho as may be in his or her possession, custody, control or power, including but not limited to any phones, computers, electronic devices, vehicles, etc. provided by LawSikho. For this purpose, the Consultant shall, during the period of engagement, keep backups of all work done for LawSikho. The Consultant must complete the

Ankur Bardhan

Abhyuday Agarwal

exit formalities with the HR department of LawSikho in order to be eligible to receive the final remuneration.

10.5.2. The Consultant will also prepare a list of work done, username and passwords of websites and official email ids pertaining to LawSikho of which the Consultant had access, admin access of social media sites of LawSikho till the date of termination of the Agreement and will deliver the same to the assigned person. The Consultant may be required to prepare manuals or guides to facilitate smooth transition of the work.

10.5.3. On termination of the Agreement, Consultant agrees to permanently delete all electronic documents and messages which pertain to LawSikho as are present in his or her computer, electronic device, storage device, storage system, or storage service that is in his possession or under his control, including (without limitation) desktop and laptop computers, mobile telephones, tablet devices, memory cards, disks, and hard drives, in his or her possession, control or custody after handing over all necessary documents and messages to the person so nominated by LawSikho. Notwithstanding anything provided in this Agreement, the Consultant can retain information relating to his compensation or relating to reimbursement of expenses, agreements relating to engagement, and information that he reasonably believes may be needed for tax purposes.

10.5.4. LawSikho shall have a right of appropriate legal action and recovery of its property including intellectual property and any consequential damages from a Consultant who stops communicating with and providing services to LawSikho without following the due process as provided for in this Clause 9.

10.5.5. The Consultant shall not use any passwords or Confidential Information of LawSikho after the Agreement is terminated.

10.5.6. The Consultant should, within 30 days of termination of this Agreement, make appropriate changes to existing social media profiles, reflecting the correct updated status of his or her past association and current dissociation with LawSikho.

10.6. Survival

10.6.1. The obligations pursuant to Clauses 4, 5, 6, 7, 8 and 9 shall persist for both Parties even after termination or expiry of this Agreement to the extent necessary to fulfill the objective of the clause.

11. RELATIONSHIP BETWEEN PARTIES

Ankur Bardhan

Abhyuday Agarwal

The Parties are transacting with each other as independent contractors and nothing in this Agreement shall constitute or recognize a partnership, joint venture or a formal business entity of any kind.

12. FORCE MAJEURE

Neither Party will be liable for or will be considered to be in breach of or default under this Agreement on account of any delay or failure to perform as a result of any cause or condition such as a natural disaster, workplace fire, etc or any other similar event beyond their control, making it impossible for this agreement to be performed.

However, in the event of occurrence of any force majeure event, it would still be expected from the affected Party to give prompt written notice to the other party and use commercially reasonable efforts to minimize the impact of the event.

13. NOTICES

13.1. Any notice pertaining to this Agreement shall be in writing and may be sent by personal delivery, pre-paid registered mail or by email to the following address:

13.2. Notice to LawSikho

Address: 576, Block C, Sushant Lok Phase I, Sector 43, Gurugram, Haryana 122002, India

Email: HR@lawsikho.in

Notice to : **Ankur Bardhan**

Address: **Front of Sahara India,**
RAJENDRA PATH, NEW MARKET,
Katihar,
Bihar,
854105

Email: **ankurbardhan2019@gmail.com**

13.3. Any notice, approval, instruction, demand or other communication under the above sub-clause shall be deemed to have been delivered

13.3.1. if given or made by registered mail, upon receipt by the addressee;

13.3.2. if given by personal delivery at the time of delivery to the addressee; and

13.3.3. if given or made by electronic mail, upon acknowledgement of receipt by the receiving Party.

14. DISPUTE RESOLUTION AND GOVERNING LAW

This Agreement shall be governed in accordance with the laws of India and shall be exclusively subject to the jurisdiction of the courts at New Delhi, India.

Ankur Bardhan

Abhyuday Agarwal

15. RESERVATION OF RIGHTS

No forbearance, indulgence, relaxation or inaction by LawSikho at any time, to require performance of any of the provisions of this Agreement shall, in any way, affect, diminish or prejudice its right to require performance of that provision at a later point in time.

16. PARTIAL INVALIDITY

If any provision of this Agreement is held to be invalid or unenforceable to any extent, the remainder of this Agreement shall not be affected and each provision of this Agreement shall be valid and enforceable to the fullest extent permitted by law. Any invalid or unenforceable provision of this Agreement shall be replaced with a provision which is valid and enforceable and most nearly reflects the original intent of the unenforceable provision.

17. ASSIGNABILITY

The rights and obligations under this Agreement are personal with respect to the Consultant and cannot be assigned without the prior written consent of LawSikho. LawSikho shall be free to assign this Agreement to a successor of LawSikho or to a purchaser of any of the assets of LawSikho.

18. MODIFICATION

LawSikho reserves the right to modify the terms of this Agreement at any time during the term of this Agreement which will be applicable after giving a due notice of 15 days to the Consultant.

19. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding of the parties and supersedes all prior agreements, whether oral or written, between the parties. The Annexure A attached to this Agreement shall form a part of this Agreement and shall be equally binding as this Agreement.

20. COUNTERPARTS

This Agreement is executed in two counterparts each of which shall constitute the original. The Consultant is required to send back the original copy of the Agreement via post within 15 days of signing the Agreement which shall be retained by LawSikho. Initially however, the Consultant can send a digitally signed copy of Agreement and it shall be considered valid.

Ankur Bardhan

Abhyuday Agarwal

SIGNED AND DELIVERED ON BEHALF OF LAWSIKHO

Abhyuday Agarwal

Abhyuday Agarwal

Director, COO

SIGNED AND DELIVERED BY THE CONSULTANT

Ankur Bardhan

Ankur Bardhan

ALL IN THE PRESENCE OF WITNESSES:

1. 2.

Ankur Bardhan